

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008149

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: DAVID STIER, ET AL

vs.

DEFENDANT: WOOLEY LANDSCAPES
LLC

NATURE OF PROCEEDINGS: MOTION - LEAVE

RULING

Plaintiffs filed a motion for leave to file a second amended complaint. The motion was served on Defendants and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motion in light of the non-opposition and orders that the second amended complaint be filed within ten days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/02/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006803

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: CABOUCHON
PROPERTIES, LLC

vs.

DEFENDANT: L L & L LLC

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL DISCOVERY FACILITATOR
PROGRAM
2) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Before the Court are two motions to compel. Plaintiff seeks further responses to Form Interrogatories, Special Interrogatories and documents responsive to its Request for Production of Documents. Defendant seeks further responses to its Requests for Production of Documents. Each side seeks monetary sanctions.

The parties have narrowed their disputes as follows:

Plaintiff's Motion

According to Plaintiff's Declaration of Non-Resolution, at issue are responses to all Form Interrogatories, Set One, and all Special Interrogatories, Set One except Special Interrogatory No. 6. Plaintiff also seeks documents responsive to Request Nos. 29, 30, and 32.

Defendant's Declaration of Non-Resolution avers it has agreed to produce supplemental responses to Form Interrogatories 12.1 through 12.6, 14.1, 15.1 and 16.1 based on its definition of incident. It has also agreed that it will confer with its client to see if there are additional documents responsive to Request Nos. 29, 30, 32. It has not specified a date by which responses or documents will be produced.

As to the Special Interrogatories, Defendant complains that Special Interrogatories Nos. 3-5 are overbroad because they seek the identity of all maintenance technicians who have worked at the subject property from January 2021 through the present. Defendant also argues that Nos. 9-11, 17-23, 22-27 and 58-60 are not relevant to the leak involved in this lawsuit because they seek information as to all tenants regarding leaks over the last five years.